

party fails to comply with the separate statement requirement. (*Truong v. Glasser* (2009) 181 Cal.App.4th 102, 118.)

“The separate statement is not merely a technical requirement, it is an indispensable part of the summary judgment or adjudication process. ‘Separate statements are required not to satisfy a sadistic urge to torment lawyers, but rather to afford due process to opposing parties and to permit trial courts to expeditiously review complex motions for ... summary judgment to determine quickly and efficiently whether material facts are disputed.’ (*United Community Church v. Garcin* (1991) 231 Cal.App.3d 327, 335 [282 Cal.Rptr. 368].)” (*Kojababian v. Genuine Home Loans, Inc.* (2009) 174 Cal.App.4th 408, 415-416, citing *Whitehead v. Habig* (2008) 163 Cal.App.4th 896, 902.)

The statute governing the format of summary judgment moving papers is permissive, not mandatory. (*Brown v. El Dorado Union High School Dist.* (2022) 76 Cal.App.5th 1003, 1019.) Facts stated elsewhere, other than in the separate statement, need not be considered by the court. (*Id.*, citing *Fleet v. CBS, Inc.* (1996) 50 Cal.App.4th 1911, 1916, fn. 3.)

Magnuson did not oppose Defendants’ motion for summary adjudication on this ground. The Court exercises its discretion to consider the merits of Defendants’ motion for summary adjudication despite this procedural deficiency. Because Defendants motion for summary judgment contends all three causes of action fail as a matter of law, the Court will consider these three grounds as the issues for summary adjudication.